

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT			1. CONTRACT ID CODE J	PAGE 1	OF 1	PAGES 48
2. AMENDMENT/MODIFICATION NUMBER 0005		3. EFFECTIVE DATE 25 Mar 2026		4. REQUISITION/PURCHASE REQUISITION NUMBER See Continuation Sheet		5. PROJECT NUMBER (If applicable)
6. ISSUED BY NAVFACSYS COM SOUTHWEST 750 PACIFIC HIGHWAY, SAN DIEGO SAN DIEGO, CA 92132-0001 UNITED STATES Demi Flores, Email: demi.m.flores.civ@us.navy.mil Telephone: 619-708-6751		CODE N62473	7. ADMINISTERED BY (If other than Item 6) SCD: PAS:		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)			☒ (X) ☒ (X) ☐	9A. AMENDMENT OF SOLICITATION NUMBER N6247324R0036		
				9B. DATED (SEE ITEM 11) 05 Jun 2025		
				10A. MODIFICATION OF CONTRACT/ORDER NUMBER		
CODE						10B. DATED (SEE ITEM 13)
FACILITY CODE						

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☒ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

See Section G - Contract Administration Data

**13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS.
IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.**

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

See Schedule

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print) Christopher Jennen	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA  (Signature of Contracting Officer)	16C. DATE SIGNED 25 Mar 2026
(Signature of person authorized to sign)			

Previous edition unusable

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

Block 14 (Description of Amendment/Modification): The purpose of this Amendment 00016 (0005) is to re-open solicitation N62473-24-R-0036 for competition following revisions to the scope and evaluation criteria.

1. The solicitation has been formally re-opened for competition. This new version supersedes all previous documents. All proposals must be prepared in exclusive response to this re-opened solicitation.
2. All previously issued amendments (0001-0015) are superseded by this amendment and should be disregarded as irrelevant.
3. The closing date and time for receipt of proposals is Monday, April 27, 2026, at 2:00 PM Pacific Daylight Time (PDT).
4. All questions or inquiries must be submitted no later than Thursday, April 02, 2026, at 12:00 P.M. PDT. The Government may not respond to inquiries received after this date and time.

All offerors must acknowledge receipt of Amendment 0016 as part of their proposal submission.

Section A - Solicitation/Contract Form

The following changes have been made:

INFORMATION	FROM	TO
Response Due Time Zone	Pacific Standard Time (UTC -8)	Pacific Daylight Time (UTC -7)
Response Due Date	20 Feb 2026	27 Apr 2026

Miscellaneous text in this section has been modified to:

A.1 CONTRACT TITLE

Base Operations Support Contract (BOSC) for Marine Corps Base Camp Pendleton (MCBCP), California (CA) and other locations approved.

A.2 TYPE OF CONTRACT

This acquisition will result in the award of a Firm-Fixed Price (FFP), Indefinite Delivery Indefinite Quantity (IDIQ), performance-based type contract, which is comprised of both recurring and non-recurring work items.

A.3 COMPETITION REQUIREMENTS/SET-ASIDE

This procurement is a 100% Small Business set-aside in accordance with FAR 19.502-2 total small business set-aside.

A.4 NAICS CODE

The NAICS code assigned to this procurement is 561210 - Facilities Support Services, having a small business size standard of \$47 Million. Refer to Section K, Representations, Certifications, and Other Statements of Offerors.

A.5 REQUEST FOR PROPOSAL (RFP) FILES

It is the sole responsibility of the Offeror to obtain the RFP files, along with any amendments, from the Procurement Integrated Enterprise Environment (PIEE) located at <https://wawf.eb.mil>. Offerors are advised to check the aforementioned website on a regular basis as RFP documents could update daily.

Section B - Supplies or Services & Prices or Costs

Miscellaneous text in this section has been modified to:

B.1 CONTRACT TERM

The performance of this contract will cover a 12-month base period, seven (7) 12-month option periods, and a 6-month extension period to include CLINs for recurring requirements in each performance period, and a CLIN for non-recurring requirements.

Option to Extend Services: The Government may need to extend the performance period beyond the established 96 months. The FAR clause 52.217-8, Option to Extend Services provides the regulatory authority to extend contract performance up to an additional six (6) months, for a total of 102 months.

B.2 CONTRACT PRICE INFORMATION

All pricing associated with this contract will be expressed in U.S. dollars.

B.3 CONTRACT LINE ITEMS, CONTRACT EXHIBIT LINE ITEMS AND SUBCLINS

A Contract Line Item Number (CLIN) consists of four numeric digits and identifies separately identifiable supplies or services. An Exhibit Line Item Number (ELIN) consists of four alphanumeric characters and is a form of separately identifiable line items for the purposes of ordering and pricing.

Offerors shall enter unit prices and amounts for Contract Line Items (CLINs) and Exhibit Line Items (ELINs) as indicated in the schedules and any accompanying exhibits.

Please note:

Government generated excel formulas are NOT guaranteed to be accurate. It is the Offeror's responsibility to ensure excel formulas used to calculate pricing are correct.

All numeric entries are limited to no more than two (2) decimal places (e.g. \$1.05, 9.75%, or 5.50)

Services under Annexes/Sub-Annexes with no recurring work may have ELINs for Unit Price Labor (UPL), services orders, or government-priced Lump Sum ELINS that apply to any future work ordered and negotiated under the associated Annex/Sub-Annex.

In the event there is a difference between the unit price and the extended total amount, the unit price will be upheld as the intended offer and the total of the CLIN and/or ELIN will be recomputed to take into account the change in the contract ELINs. If the Offeror provides a total amount for an ELIN, but fails to enter the unit price, the total amount divided by the ELIN quantity will be held to be the intended unit price.

B.4 FULLY LOADED PRICING

Prices provided shall be fully loaded and no other allocations, fees, overheads, G&A, insurance, taxes, profits or any other markups shall be applied when an option is exercised, or work is ordered for pre-priced work. Costs for technical specifications in Annexes 0100000 and 0200000 shall be considered overhead; therefore, their costs shall be allocated and included throughout the prices quoted for all other technical specifications.

B.5 MOBILIZATION, PHASE-IN, AND/OR PHASE-OUT

Pricing shall include applicable Mobilization, Phase-In, and/or Phase-Out costs. There are no separately priced CLIN for such costs; offerors may distribute these costs however the Offeror chooses in its proposal. Phase-In shall be 60 calendar days prior to the start date of the base contract performance period.

B.6 INDEFINITE QUANTITY INDIVIDUAL CONTRACT LINE ITEM QUANTITIES

Quantities listed for non-recurring ELINs are estimates only. Additional quantities may be ordered as long as the total not-to-exceed (NTE) value for all non-recurring services is not exceeded

B.7 BIDDING UNIT PRICES FOR LABOR

Any work included in the scope of this contract that cannot be identified in advanced in sufficient detail to be included as Recurring Work Items is considered Non-Recurring Work.

The Contractor shall enter, in the unit price bid space, the unit price for performing composite labor. The composite labor price shall include all direct and indirect costs associated with performing an hour of work. The composite labor price should be the Contractor's hourly craft wage adjusted to allow for the Offeror's work force productivity (i.e., the Contractor's estimate of how its' work force will perform in relation to the Means Facilities Cost and data and/or the Engineered Performance Standards). The Composite Labor Rate shall include all costs for preparation of the cost proposal, job preparation, travel, pre-expended bin materials and supplies, ordering and stockpiling job material, additional material handling, items of equipment necessary to perform work (i.e. bucket truck, lifting equipment, staging, etc.), equipment set up time, lift time, craft delay allowance, profit, tools, equipment, field and home office overhead, clerical support, supervision, inspection, fees, taxes, licenses, bonds, permits, insurance, etc.

B.8 UNIT PRICE ADJUSTMENTS IN OPTION PERIODS

This solicitation incorporates Service Contract Act (SCA) and Davis-Bacon Act (DBA) Wage Determination(s). The Wages are incorporated for the

Base Period of performance only. If the Option Period is exercised, the most current Determination(s) for that Option Period will be incorporated into the contract. The contractor warrants by submission of its proposal that the price does not include any contingency for future wage increases.

B.9 MAXIMUM NOT TO EXCEED (NTE)

The maximum NTE value of an ordering period is the total of all the CLINs in that ordering period. The maximum or NTE value of the contract is the total value of all CLINs in the Schedule. Orders shall not be made that exceed the maximum NTE value for any ordering period and/or the NTE value of the contract.

Capacity Reporting under Section G requires the Contractor to notify the Government before capacity is reached. Any change to the NTE value of an ordering period and/or contract will be authorized by a modification.

B.10 MINIMUM GUARANTEE

The Minimum Guarantee for this contract will be satisfied by issuance of the funding task order for recurring requirements in the base period of performance.

B.11 FEDMALL AND GOVERNMENT COMMERCIAL PURCHASE CARD (GCPC)

Orders for non-recurring services may be placed through FedMall by an authorized Government Commercial Purchase Card (GCPC) user. The Contractor is required to obtain access to FedMall and ensure that their ELIN schedules are updated to support orders for non-recurring services. It is important to note that a majority of IDIQ orders are anticipated to be placed through FedMall, and Contractors must be prepared to fulfill these orders via the platform. Upon receiving an order through FedMall, the Contractor must provide services at the applicable ELIN price, without additional markup or handling fees. Contractors are responsible for accounting for all associated costs, including the 3.5% FedMall processing fee that applies to each transaction. As such, the ELIN Price Schedule should include all fees and costs necessary to fulfill orders through FedMall, ensuring no additional charges are incurred. For more information on FedMall registration and access to Web-Based Training, Contractors should refer to the FedMall Supplier Portal at: <https://www.suppliers.fedmall.mil>. Additional details on ordering and reporting requirements can be found in sections F and G.

The following CLIN(s) / SLIN(s) / ELIN(s) were added:

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
Option Line Item 4001	Recurring Services - Option Period 4: The total price for this CLIN represents the total Option Period 4 (12 months) for Base Operations Support Contract (BOSC) services for Marine Corps Camp Pendleton, CA and other locations as approved for recurring work in accordance with the Performance Work Statement (PWS) and all applicable attachments. See Attachment J-0200000-14 Exhibit Line-Item Number (ELIN) Pricing Schedule, Exhibit A (ELIN E001-E027), for pricing details. Funding will be provided via a Task Order. Product Service Code: S216 Pricing Arrangement: Firm Fixed Price	1	Task		

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
Option Line Item 5001	Recurring Services - Option Period 5: The total price for this CLIN represents the total Option Period 5 (12 months) for Base Operations Support Contract (BOSC) services for Marine Corps Camp Pendleton, CA and other locations as approved for recurring work in accordance with the Performance Work Statement (PWS) and all applicable attachments. See Attachment J-0200000-14 Exhibit Line-Item Number (ELIN) Pricing Schedule, Exhibit A (ELIN F001-F027), for pricing details. Funding will be provided via a Task	1	Task		

	Order. Product Service Code: S216 Pricing Arrangement: Firm Fixed Price				
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Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
Option Line Item 6001	Recurring Services - Option Period 6: The total price for this CLIN represents the total Option Period 6 (12 months) for Base Operations Support Contract (BOSC) services for Marine Corps Camp Pendleton, CA and other locations as approved for recurring work in accordance with the Performance Work Statement (PWS) and all applicable attachments. See Attachment J-0200000-14 Exhibit Line-Item Number (ELIN) Pricing Schedule, Exhibit A (ELIN G001-G027), for pricing details. Funding will be provided via a Task Order. Product Service Code: S216 Pricing Arrangement: Firm Fixed Price	1	Task		

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
Option Line Item 7001	Recurring Services - Option Period 7: The total price for this CLIN represents the total Option Period 7 (12 months) for Base Operations Support Contract (BOSC) services for Marine Corps Camp Pendleton, CA and other locations as approved for recurring work in accordance with the Performance Work Statement (PWS) and all applicable attachments. See Attachment J-0200000-14 Exhibit Line-Item Number (ELIN) Pricing Schedule, Exhibit A (ELIN H001-H027), for pricing details. Funding will be provided via a Task Order. Product Service Code: S216 Pricing Arrangement: Firm Fixed Price	1	Task		

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
Option Line Item 8001	Recurring Services - Option Period 8: The total price for this CLIN represents the total FAR 52.217-8 Period (6 months) for Base Operations Support Contract (BOSC) services for Marine Corps Camp Pendleton, CA and other locations as approved for recurring work in accordance with the Performance Work Statement (PWS) and all applicable attachments. See Attachment J-0200000-14 Exhibit Line-Item Number (ELIN) Pricing Schedule, Exhibit A (ELIN J001-J027), for pricing details. Funding will be provided via a Task Order. Product Service Code: S216 Pricing Arrangement: Firm Fixed Price	1	Task		

The following CLIN(s) / SLIN(s) / ELIN(s) were modified:

0001		
INFORMATION	FROM	TO
	Recurring Services - Base Period: The total price for	Recurring Services - Base Period: The total price for

Description	this CLIN represents the total Base Period (6 months) for Base Operations Support Contract (BOSC) services for Marine Corps Camp Pendleton, CA for recurring work in accordance with the Performance Work Statement (PWS) and all applicable attachments. See Attachment J-0200000-14 Exhibit Line Item Number (ELIN) Pricing Schedule, Exhibit A (ELIN A001-A0027), for pricing details. Funding will be provided via a Task Order.	this CLIN represents the total Base Period (12 months) for Base Operations Support Contract (BOSC) services for Marine Corps Camp Pendleton, CA and other locations as approved for recurring work in accordance with the Performance Work Statement (PWS) and all applicable attachments. See Attachment J-0200000-14 Exhibit Line-Item Number (ELIN) Pricing Schedule, Exhibit A (ELIN A001-A0027), for pricing details. Funding will be provided via a Task Order.
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0002

INFORMATION	FROM	TO
Description	Nonrecurring Services: The total price for this CLIN represents the total Base Period and all Option Periods for BOSC services for Marine Corps Camp Pendleton, CA for nonrecurring work in accordance with the PWS and all applicable attachments. See Attachment J-0200000-14 ELIN Pricing Schedule, Exhibit A (ELINS X700 - X789), for pricing details. Funding will be provided via a Task Order or FEDMALL.	Nonrecurring Services: The total price for this CLIN represents the total Base Period and all Option Periods for BOSC services for Marine Corps Camp Pendleton, CA and other locations as approved for nonrecurring work in accordance with the PWS and all applicable attachments. See Attachment J-0200000-14 ELIN Pricing Schedule, Exhibit A (ELINS X700 - X789), for pricing details. Funding will be provided via a Task Order or FEDMALL. Funding will be obligated at the Task Order Level, and the services will be rendered no more than a year from the date that the funds were obligated.

Option Line Item 1001

INFORMATION	FROM	TO
Description	Recurring Services - Option Period 1: The total price for this CLIN represents the total Option Period 1 (12 months) for Base Operations Support Contract (BOSC) services for Marine Corps Camp Pendleton, CA for recurring work in accordance with the Performance Work Statement (PWS) and all applicable attachments. See Attachment J-0200000-14 Exhibit Line Item Number (ELIN) Pricing Schedule, Exhibit A (ELIN B001-B0027), for pricing details. Funding will be provided via a Task Order.	Recurring Services - Option Period 1: The total price for this CLIN represents the total Option Period 1 (12 months) for Base Operations Support Contract (BOSC) services for Marine Corps Camp Pendleton, CA and other locations as approved for recurring work in accordance with the Performance Work Statement (PWS) and all applicable attachments. See Attachment J-0200000-14 Exhibit Line-Item Number (ELIN) Pricing Schedule, Exhibit A (ELIN B001-B027), for pricing details. Funding will be provided via a Task Order.

Option Line Item 2001

INFORMATION	FROM	TO
Description	Recurring Services - Option Period 2: The total price for this CLIN represents the total Option Period 2 (12 months) for Base Operations Support Contract (BOSC) services for Marine Corps Camp Pendleton, CA for recurring work in accordance with the Performance Work Statement (PWS) and all applicable attachments. See Attachment J-0200000-14 Exhibit Line Item Number (ELIN) Pricing Schedule, Exhibit A (ELIN C001-C0027), for pricing details. Funding will be provided via a Task Order.	Recurring Services - Option Period 2: The total price for this CLIN represents the total Option Period 2 (12 months) for Base Operations Support Contract (BOSC) services for Marine Corps Camp Pendleton, CA and other locations as approved for recurring work in accordance with the Performance Work Statement (PWS) and all applicable attachments. See Attachment J-0200000-14 Exhibit Line-Item Number (ELIN) Pricing Schedule, Exhibit A (ELIN C001-C027), for pricing details. Funding will be provided via a Task Order.

Option Line Item 3001

INFORMATION	FROM	TO
Description	Recurring Services - Option Period 3: The total price for this CLIN represents the total Option Period 3 (12 months) for Base Operations Support Contract (BOSC) services for Marine Corps Camp Pendleton, CA for recurring work in accordance with the Performance Work Statement (PWS) and all applicable attachments. See Attachment J-0200000-14 Exhibit Line Item Number (ELIN) Pricing Schedule, Exhibit A (ELIN D001-D0027), for pricing details. Funding will be provided via a Task Order.	Recurring Services - Option Period 3: The total price for this CLIN represents the total Option Period 3 (12 months) for Base Operations Support Contract (BOSC) services for Marine Corps Camp Pendleton, CA and other locations as approved for recurring work in accordance with the Performance Work Statement (PWS) and all applicable attachments. See Attachment J-0200000-14 Exhibit Line-Item Number (ELIN) Pricing Schedule, Exhibit A (ELIN D001-D027), for pricing details. Funding will be provided via a Task Order.

Section C - Description/Specifications/Statement of Work

Miscellaneous text in this section has been modified to:

SECTION C TECHNICAL ANNEXES WILL BE PROVIDED AS A SEPARATE ATTACHMENT TO

THIS SOLICITATION. SEE SECTION J FOR LIST OF ATTACHMENTS.

C.1 PERFORMANCE WORK STATEMENT (PWS)

All technical annexes associated with this contract will be provided as attachments to this solicitation. See Section J for the complete list of attachments. The proposal presented by the Offeror to whom the award is made will be incorporated, in whole or in part, into the contract at time of award.

This requirement is intended to provide a broad scope in order to provide the ability to order any Facilities Support Services across all NAVFAC Annexes. As this is an IDIQ Contract for recurring and non-recurring services; technical annexes with recurring requirements will have inventories, as applicable to the support annex/sub-annex where non-recurring services will not have associated inventories.

C.2 EMERGENCY TASK ORDERS

1. Most Task Orders issued will be definitive (a defined price based on predetermined tasks and quantities). However, under emergency conditions, or when otherwise appropriate, the Contracting Officer may issue non-definitive (lacking definitive tasks or quantities) Task Orders which direct the Contractor upon issuance of the order to proceed with the work immediately. These unilateral orders will specify the work as non-definitive and will contain a maximum (not-to-exceed) dollar amount, against which the Contractor can submit invoices, during contract performance. The contractor shall notify the Contracting Officer once it has reached 50% of the not-to exceed amount so that the Contracting Officer may be prepared to increase this amount without requiring the contractor to stop work. Under no circumstances shall that contractor exceed the not-to-exceed amount without direct authorization from the Contracting Officer. The onsite Government representative has no authority to direct the contractor to do any work that has not been specifically authorized by the Contracting Officer. The final price will be determined through subsequent negotiations.
2. Within two (2) working days from the notice to proceed, the Contracting Officer will conduct a joint scoping meeting with the Contractor to further identify the work and establish Task Order requirements. Following Government acceptance of the detailed scope of work, the Contractor shall prepare and submit a proposal.
3. Following receipt of the Contractor's proposal, the Government will review the proposal. Upon completion of negotiations, the Contracting Officer will issue a Modification to the Task Order to incorporate the detailed scope of work, other Task Order requirements, and the final Task Order price. Failure to reach an agreement on the final price will be settled in accordance with FAR Clause 52.233-1 DISPUTES (May 2014) - ALTERNATE I (DEC 1991).
4. ORAL ORDERS: Only the Contracting Officer may issue oral orders in emergency circumstances. In the case of an emergency (unless otherwise changed by mutual consent), the contractor shall be at the emergency site within two (2) hours of initial direction from the Contracting Officer. An oral order will be confirmed by issuance of a written task order within two (2) working days after the oral order is placed. Orders may be modified orally by the Contracting Officer in emergency circumstances. An oral modification shall be confirmed by issuance of a written modification on Standard Form 30 within two (2) working days from the time of the oral communication modifying the order.

The Requirements text has been modified to:

BOSC at MCBBCP

Section E - Inspection and Acceptance

Miscellaneous text in this section has been modified to:

E.1 ACCEPTANCE

The performance and quality of work delivered by the contractor, including services rendered and any compiled documentation or written material shall be subject to inspection, review, and acceptance by the Government.

E.2 CONTRACTOR QUALITY MANAGEMENT SYSTEM (QMS)

The Contractor shall establish and maintain a Quality Management System Program, and submit a Quality Management (QM) plan, in accordance with the PWS. Each phase of services rendered under this contract is subject to government inspection during the Contractor's operations and after completion of tasks. The Government's Quality Assurance Surveillance Program is not a substitute for quality management by the Contractor. All findings of unsatisfactory or non-performed work will be administered in accordance with FAR 52.246-4 INSPECTION OF SERVICES - FIXED PRICE, Section E, using the applicable ELIN in the ELIN schedule as the basis for any deductions. All costs associated with rework are the responsibility of the Contractor. The Government reserves the right to choose the inspection methods to be used in implementing its Quality Assurance Surveillance Program and to vary the inspection methods utilized during contract performance without notice to the Contractor.

E.3 PERFORMANCE EVALUATION MEETINGS

The Contractor shall meet with the Government's representative weekly during the first six (6) months of the contract. Thereafter, meetings will be as often as necessary at the discretion of the Contracting Officer, but not less than monthly. A mutual effort will be made to resolve all problems identified. The written minutes of these meetings, prepared by the Government, shall be signed by the Contractor's representative and the Government's representative. Should the Contractor not concur with the minutes, the Contractor shall state, in writing, to the Contracting Officer any areas of disagreement within ten (10) calendar days.

The Government will periodically assess the Contractor's overall performance in the Contractor Performance Assessment System (CPARS) allowing for correction and documentation of substandard performance. The Contractor will be afforded an opportunity to comment on each evaluation performed. The Contractor has 30 calendar days to submit written comments on unsatisfactory ratings.

The following clauses were added:

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-12	Inspection of Construction.	Aug 1996		

The following clauses were deleted:

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-16	Responsibility for Supplies.	Apr 1984		

Section F - Deliveries or Performance

The delivery information for the following CLIN(s) / SLIN(s) / ELIN(s) were added:

0001

INFORMATION	VALUE
Period of Performance	01 Apr 2028 to 31 Mar 2029

0002

INFORMATION	VALUE
Period of Performance	01 Apr 2028 to 31 Mar 2036

Option Line Item 1001

INFORMATION	VALUE
Period of Performance	01 Apr 2029 to 31 Mar 2030

Option Line Item 2001

INFORMATION	VALUE
Period of Performance	01 Apr 2030 to 21 Mar 2031

Option Line Item 3001

INFORMATION	VALUE
Period of Performance	01 Apr 2031 to 31 Mar 2032

Option Line Item 4001

INFORMATION	VALUE
Period of Performance	01 Apr 2032 to 01 Mar 2033

Option Line Item 5001

INFORMATION	VALUE
Period of Performance	01 Apr 2033 to 31 Mar 2034

Option Line Item 6001

INFORMATION	VALUE
Period of Performance	01 Apr 2034 to 31 Mar 2035

Option Line Item 7001

INFORMATION	VALUE
Period of Performance	01 Apr 2035 to 31 Mar 2036

Option Line Item 8001

INFORMATION	VALUE
Period of Performance	01 Apr 2036 to 30 Sep 2036

The delivery information for the following CLIN(s) / SLIN(s) / ELIN(s) were modified:

0001

INFORMATION	FROM	TO
Period of Performance	to	01 Apr 2028 to 31 Mar 2029

0002

INFORMATION	FROM	TO
Period of Performance	to	01 Apr 2028 to 31 Mar 2036

Option Line Item 1001

INFORMATION	FROM	TO
Period of Performance	to	01 Apr 2029 to 31 Mar 2030

Option Line Item 2001

INFORMATION	FROM	TO
Period of Performance	to	01 Apr 2030 to 21 Mar 2031

Option Line Item 3001

INFORMATION	FROM	TO
Period of Performance	to	01 Apr 2031 to 31 Mar 2032

Miscellaneous text in this section has been modified to:

F.1 LOCATION

The Primary work location will be at Marine Corps Base Camp Pendleton, California. The Scope of this contract will include other locations as approved by mutual agreement.

Section G - Contract Administration Data

Miscellaneous text in this section has been modified to:

G.1 IDENTIFICATION OF PROCURING/ADMINISTRATIVE CONTRACTING OFFICER/ORDERING OFFICER

NAVFAC Southwest
PW Contracts CORE - FSC Code RAQ10-FSC
750 Pacific Highway San Diego, CA 92132

The Administrative Contracting Office is:
NAVFAC Southwest
Camp Pendleton FEAD/Code ROPCN Marine Corps Base
9th Street, Bldg. 22101, Camp Pendleton, CA 92055

G.2 ADMINISTRATIVE CONTRACTING OFFICERS

The Administrative Contracting Office is responsible for the contract in its entirety and possesses complete authority to modify the terms of the basic contract. NAVFAC SW Contracting Officers and authorized ordering officers will be responsible for ordering and administration of the individual Task Orders. The terms "Contracting Officer" and "Ordering Officer" may be used interchangeably when referring to individual Task Orders. All post-award and administrative correspondence, i.e., insurance, Preliminary Notices, etc., shall be addressed to the ACO and shall include the Contract number and Task Order number as applicable.

G.3 CONTRACTING OFFICER'S REPRESENTATIVE (COR)

The COR for the basic contract and all task orders will be designated in writing by the Contracting Officer. The COR functions as the technical representative of the Contracting Officer in the administration of the basic contract, providing technical direction and discussion as necessary, with respect to the specifications or statement of work, and monitoring the performance of work under the contract. CORs are not authorized to take any action, either directly or indirectly, that could result in a change in the pricing, quantity, quality, place of performance, delivery schedule, or other terms and conditions of the basic contract or Task Orders, or to direct the accomplishment of efforts which would exceed the scope of the basic contract or Task Orders. If the contractor believes that a COR's interpretation of specifications is erroneous, the contractor shall notify the responsible Contracting Officer in writing of this position.

It is important to note that only the Contracting Officer has the authority to modify the terms of the contract, and in no event will any understanding or agreement that deviates from the terms of the basic contract between the Contractor and any other person be effective or binding on the Government.

G.4 OMBUDSMAN

The agency's designated Task Order Ombudsman is the NAVFAC SW Commanding Officer (CO). The CO is located at 750 Pacific Highway, San Diego, CA 92132.

G.5 ORDER ISSUANCE PROCEDURES

A task order for recurring services will be issued using DD Form 1155 "Order for Supplies and Services" at the time of award and at the time each option period is exercised.

An order for non-recurring services will be ordered on an as-needed basis in one of the following ways:

1. The ACO may issue a task order using DD Form 1155.
2. An order may be placed through FedMall by an authorized Government Commercial Purchase Card (GCPC) user.

The Contractor is required to obtain FedMall access and ensure ELIN schedules are updated to support orders within any performance period. When receiving an order through FedMall, the Contractor shall provide the services at the applicable ELIN price without additional markup or handling fee. The FedMall Supplier Portal, <https://www.suppliers.fedmall.mil>, provides registration information and access to Web-Based Training.

The Government reserves the right to issue BTOs with bulk funding for non-recurring work; however, performance of work shall not commence until written authorization is received from the Contracting Officer. Each issued BTO and subsequent work authorization will include a firm fixed- price not-to-exceed amount which can only be altered via BTO modification.

The Contractor is required to support monthly reconciliation of Blanket Task Orders to verify work completed, assurance of work completed within the limits of available funds, and remaining capacity.

G.6 CONTRACT REPORTING REQUIREMENTS

The contractor shall track all orders (whether issued via Task Order or through FedMall) and provide a monthly report to the ACO and COR by the fifth day of the following month. The contractor must inform the ACO when total dollar value of all orders for non-recurring services reaches 75% of the total NTE value.

G.7 SERVICE CONTRACT REPORTING REQUIREMENTS

Service Contract Reporting (SCR) requirements apply to this contract. The contractor shall report required SCR data fields using the SCR section of

the System for Award Management (SAM) at following web address: <https://sam.gov/content/home>. Reporting inputs will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year.

G.8 POST AWARD LIMITATION ON SUBCONTRACTING CERTIFICATION

FAR 52.219-14 Limitations on Subcontracting requirements apply to this contract. The contractor shall submit Individual Subcontracting Reported (ISRs) semi-annually via the government's electronic Subcontracting Reporting System (eSRS) at <https://www.esrs.gov>. ISRs are due within 30 days of the close of each reporting period. Reporting aligns with the Government's fiscal year; the first reporting period runs October 1 through March 31, and the second reporting period runs October 1 through September 30. Also, upon request by the Government, the Contractor agrees to provide payroll data, subcontractor/vendor paid invoices, and other financial records in order to substantiate contractor-submitted information contained in its ISRs.

G.9 PAYMENT INSTRUCTIONS

Payments shall be made in accordance with the WAWF Clause of the respective Task Order. The standard payment instructions identified in the link below are also applicable to this Contract/Task Order:

https://www.acq.osd.mil/dpap/dars/pgi/pgi_hm/current?PGI204_71.htm#payment_instructions

Additional Information/Notes

The following clauses were modified:

252.232-7006 Wide Area WorkFlow Payment Instructions.

Jan 2023

hereby reads as follows:

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

NAVCON

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>HQ0871</u>
Issue By DoDAAC	<u>N62473/No Extension</u>
Admin DoDAAC	<u>N62473/No Extension</u>
Inspect By DoDAAC	<u>N62473/ROPCN</u>
Ship To Code	<u>N/A</u>
Ship From Code	<u>N/A</u>
Mark For Code	<u>N/A</u>
Service Approver (DoDAAC)	<u>N/A</u>
Service Acceptor (DoDAAC)	<u>N/A</u>
Accept at Other DoDAAC	<u>N62473/ROPCN</u>

LPO DoDAAC	<u>N/A</u>
DCAA Auditor DoDAAC	<u>N/A</u>
Other DoDAAC(s)	<u>N/A</u>

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

NOT APPLICABLE

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

Miscellaneous text in this section has been modified to:

H.1 FEDMALL AND GOVERNMENT-WIDE COMMERCIAL PURCHASE CARD ORDERS

FedMall is a U.S. Government owned and operated web-based ordering system that enables any Department of Defense (DoD) or Federal activity to search for and order goods and services. The Contractor is required to obtain FedMall access and ensure ELIN schedules are updated to support orders for non-recurring services that may be placed by an authorized Government Commercial Purchase Card (GCPC) user. The FedMall Supplier Portal provides registration information and access to Web Based Training at <https://www.suppliers.fedmall.mil>.

The contractor is required to receive and accept electronically submitted orders issued through FedMall using 128-bit encrypted email. The contractor agrees to purchase, install, and utilize the most recent version of PGP Personal software, or a comparable solution, for the purpose of decrypting order notification emails from FedMall. In addition, the DoD has established the External Certification Authority (ECA) program to support the issuance of DoD-approved certificates to contractors. The ECA program is designed to provide the mechanism for contractors to securely communicate with the DoD and authenticate to DoD Information Systems. The contractor agrees to purchase, install, maintain and use a DoD-approved ECA certificate. Information on obtaining an ECA certificate can be found at <https://public.cyber.mil/eca/obtain-an-eca-certificate>.

The Contractor is required to ensure ELIN schedules are uploaded and updated with expedience to support orders within any performance period. Contractors shall do so, as follows:

- a. Contractors with previous FedMall access shall have ELINs loaded within one (1) month of contract award.
- b. Contractors without previous FedMall access shall have ELINs loaded within two (2) months of contract award. Additional time has been allotted herein to permit the Contractor to gain access to FedMall; based on the rigorous process, the Contractor is encouraged to initiate access upon award in order to meet this deadline.
- c. Upon the Government's notification to the Contractor of its intent to award a subsequent option period, the Contractor shall remove the current pricing the last day of the performance period and initiate upload of the ELIN schedule for the respective option period to ensure its availability no later than the first day of performance.
- d. The contractor shall post updates on order delivery schedule and performance to the FedMall within three (3) business days.

H.2 WAGE DETERMINATION

The Service Contract Act (SCA) and Davis-Bacon Act (DBA) Wage Determinations (WD) listed below are hereby incorporated into this solicitation and the resulting award for all requirements. The full WD for each will be provided as attachments to this solicitation. See Section J for the complete list of attachments.

-SCA WD 2015-5635 dated December 03, 2025

-DBA General Decision CA20260001 Modification #2 dated January 23, 2026

Section I - Contract Clauses

Additional Information/Notes

The following clauses were added:

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.223-10	Waste Reduction Program. (DEVIATION 2025-O0004)	Mar 2025	Deviation 2025-O0004	Mar 2025
52.223-23	Sustainable Products and Services. (DEVIATION 2025-O0004)	Feb 2026	Deviation 2025-O0004	Mar 2025

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		

The following clauses were modified:

52.216-19 Order Limitations. Oct 1995
hereby reads as follows:

Order Limitations (Oct 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$50, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor-

(1) Any order for a single item in excess of \$15,000,000;

(2) Any order for a combination of items in excess of \$20,000,000; or

(3) A series of orders from the same ordering office within Five (5) days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within Three (3) days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity. Oct 1995
hereby reads as follows:

Indefinite Quantity (Oct 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract **after the contract completion date of the basic contract or the contract completion date of an associated order, whichever is later.**

(End of clause)

52.216-24 Limitation of Government Liability.
hereby reads as follows:

Apr 1984

Limitation of Government Liability (Apr 1984)

(a) In performing this contract, the Contractor is not authorized to make expenditures or incur obligations exceeding * dollars.

(b) The maximum amount for which the Government shall be liable if this contract is terminated is * dollars.

*** SEE INDIVIDUAL TASK ORDER FOR SPECIFIC INFORMATION**

(End of clause)

52.217-8 Option to Extend Services.
hereby reads as follows:

Nov 1999

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within **30 days prior to the end of the period of performance.**

52.217-9 Option to Extend the Term of the Contract.
hereby reads as follows:

Mar 2000

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within **the period of performance**; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed **102 months**.

(End of clause)

52.219-14 Limitations on Subcontracting.
hereby reads as follows:

Oct 2022

Limitations on Subcontracting (Oct 2022)

- (a) This clause does not apply to the unrestricted portion of a partial set-aside.
- (b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-
 - (1) Has the same small business program status as that which qualified the prime contractor for the award (*e.g.*, for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and
 - (2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.
- (c) *Applicability*. This clause applies only to-
 - (1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);
 - (2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);
 - (3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;
 - (4) Orders expected to exceed the simplified acquisition threshold and that are-
 - (i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or
 - (ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);
 - (5) Orders, regardless of dollar value, that are-
 - (i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or
 - (ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and
 - (6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.
- (d) *Independent contractors*. An independent contractor shall be considered a subcontractor.
- (e) *Limitations on subcontracting*. By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-
 - (1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;
 - (2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;
 - (3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or
 - (4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.
- (f) The Contractor shall comply with the limitations on subcontracting as follows:
 - (1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[] By the end of the base term of the contract and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation.

Jan 2025

hereby reads as follows:

Postaward Small Business Program Rerepresentation (Jan 2025)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)-

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraphs (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under _____ NAICS Code assigned to _____ contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [_____] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [_____] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.

(6) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not a veteran-owned small business concern.

(7) *[Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.]* The Contractor represents that it ☐ is, ☐ is not a service-disabled veteran-owned small business concern.

(8) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [_____] The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.

(9) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [_____] The Contractor shall enter the

names of each of the HUBZone small business concerns participating in the HUBZone joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.223-3 Hazardous Material Identification and Material Safety Data.
hereby reads as follows:

Feb 2021

Hazardous Material Identification and Material Safety Data (Feb 2021)

(a) "Hazardous material," as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No.313 (including revisions adopted during the term of the contract).

(b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Material Safety Data Sheet submitted under this contract.

Material (If none, insert <i>None</i>)	Identification No.
=====	=====
=====	=====
=====	=====

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Material Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No.313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No.313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Material Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No.313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-

(i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with paragraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of clause)

52.225-9 Buy American-Construction Materials.
hereby reads as follows:

Oct 2022

Buy American-Construction Materials (Oct 2022)

(a) *Definitions.* As used in this clause-

Commercially available off-the-shelf (COTS) item-

(1) Means any item of supply (including construction material) that is-

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

"Construction material" means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means-

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Domestic construction material means-

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if-

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or

sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

"United States" means the 50 States, the District of Columbia, and outlying areas.

(b) Domestic preference.

(1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction materials, excluding COTS fasteners. (See FAR 12.505(a)(2)). The Contractor shall use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.

(2) This requirement does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

(3) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(2) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) *For domestic construction material that is not a critical item or does not contain critical components.*

(1) The cost of a particular domestic construction material subject to the requirements of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that is manufactured in the United States and does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(A)(1) of this clause.

(3) The procedures in paragraph (b)(3)(i)(A)(2) of this clause will no longer apply as of January 1, 2030.

(B) *For domestic construction material that is a critical item or contains critical components.*

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest foreign offer of construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(B)(1) of this clause.

(3) The procedures in paragraph (b)(3)(i)(B)(2) of this clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(3) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data.* To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

	Foreign and Domestic Construction Materials Price Comparison				
	Construction Material Description	Unit of Me asure	Q ua n ti ty	Price (dolla rs)*	
	Item1:				
	Foreign construction material	==	= =	==	

	Domestic construction material	==	= =	==	
	Item2:				
	Foreign construction material	==	= =	==	
	Domestic construction material	==	= =	==	
[* Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)]. [List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.] [Include other applicable supporting information.]					

(End of clause)

52.232-19 Availability of Funds for the Next Fiscal Year.
hereby reads as follows:

Apr 1984

Availability of Funds for the Next Fiscal Year (Apr 1984)

Funds are not presently available for performance under this contract beyond *. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond *, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

*** SEE INDIVIDUAL TASK ORDER FOR SPECIFIC INFORMATION**

(End of clause)

52.252-6 Authorized Deviations in Clauses.
hereby reads as follows:

Nov 2020

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any **Defense Federal Acquisition Regulation Supplement** (48 CFR **Chapter 2**) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

252.211-7003 Item Unique Identification and Valuation.
hereby reads as follows:

Jan 2023

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise " means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description
=====	=====
=====	=====
=====	=====

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description
=====	=====
=====	=====
=====	=====

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier.*

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

(1) Unique item identifier.

(2) Unique item identifier type.

(3) Issuing agency code (if concatenated unique item identifier is used).

(4) Enterprise identifier (if concatenated unique item identifier is used).

(5) Original part number (if there is serialization within the original part number).

(6) Lot or batch number (if there is serialization within the lot or batch number).

(7) Current part number (optional and only if not the same as the original part number).

(8) Current part number effective date (optional and only if current part number is used).

(9) Serial number (if concatenated unique item identifier is used).

- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
- (2) Unique item identifier of the embedded subassembly, component, or part.
- (3) Unique item identifier type.**
- (4) Issuing agency code (if concatenated unique item identifier is used).**
- (5) Enterprise identifier (if concatenated unique item identifier is used).**
- (6) Original part number (if there is serialization within the original part number).**
- (7) Lot or batch number (if there is serialization within the lot or batch number).**
- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

- (i) Use of the embedded items capability in WAWF;
- (ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or
- (iii) Via WAWF as a deliverable attachment for exhibit line item number ____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts.* If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.232-7007 Limitation of Government's Obligation.
hereby reads as follows:

Apr 2014

(a) Contract line item(s) is/are incrementally funded. For this/these item(s), the sum of \$ ____ of the total price is presently available for payment and allotted to this contract. An allotment schedule is set forth in paragraph (j) of this clause.

(b) For item(s) identified in paragraph (a) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement in the event of termination of those item(s) for the Government's convenience, approximates the total amount currently allotted to the contract. The Contractor is not authorized to continue work on those item(s) beyond that point. The Government will not be obligated in any event to reimburse the Contractor in excess of the amount allotted to the contract for those item(s) regardless of anything to the contrary in the clause entitled "Termination for Convenience of the Government." As used in this clause, the total amount payable by the Government in the event of termination of applicable contract line item(s) for convenience includes costs, profit, and estimated termination settlement costs for those item(s).

(c) Notwithstanding the dates specified in the allotment schedule in paragraph (j) of this clause, the Contractor will notify the Contracting Officer in writing at least ninety days prior to the date when, in the Contractor's best judgment, the work will reach the point at which the total amount payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then allotted to the contract for performance of the applicable item(s). The notification will state (1) the estimated date when that point will be reached and (2) an estimate of additional funding, if any, needed to continue performance of applicable line items up to the next scheduled date for allotment of funds identified in paragraph (j) of this clause, or to a mutually agreed upon substitute date. The notification will also advise the Contracting Officer of the estimated amount of additional funds that will be required for the timely performance of the item(s) funded pursuant to this clause, for a subsequent period as may be specified in the allotment schedule in paragraph (j) of this clause or otherwise agreed to by the parties. If after such notification additional funds are not allotted by the date identified in the Contractor's notification, or by an agreed substitute date, the Contracting Officer will terminate any item(s) for which additional funds have not been allotted, pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the contract line item(s) identified in paragraph (a) of this clause, the parties will agree as to the period of contract performance which will be covered by the funds. The provisions of paragraphs (b) through (d) of this clause will apply in like manner to the additional allotted funds and agreed substitute date, and the contract will be modified accordingly.

(e) If, solely by reason of failure of the Government to allot additional funds, by the dates indicated below, in amounts sufficient for timely performance of the contract line item(s) identified in paragraph (a) of this clause, the Contractor incurs additional costs or is delayed in the performance of the work under this contract and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the item(s), or in the time of delivery, or both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the clause entitled "Disputes."

(f) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a) of this clause.

(g) The termination provisions of this clause do not limit the rights of the Government under the clause entitled "Default." The provisions of this clause are limited to the work and allotment of funds for the contract line item(s) set forth in paragraph (a) of this clause. This clause no longer applies once the contract is fully funded except with regard to the rights or obligations of the parties concerning equitable adjustments negotiated under paragraphs (d) and (e) of this clause.

(h) Nothing in this clause affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(i) Nothing in this clause shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

(j) The parties contemplate that the Government will allot funds to this contract in accordance with the following schedule:

On execution of contract	\$ ____
(month) (day), (year)	\$ ____
(month) (day), (year)	\$ ____
(month) (day), (year)	\$ ____

(End of clause)

The following clauses were deleted:

FAR Clauses Incorporated by Full Text

52.216-25 Contract Definitization.

(Oct 2010)

Contract Definitization (Oct 2010)

(a) A ____ [insert specific type of contract] definitive contract is contemplated. The Contractor agrees to begin promptly negotiating with the Contracting Officer the terms of a definitive contract that will include (1) all clauses required by the Federal Acquisition Regulation (FAR) on the date of execution of the letter contract, (2) all clauses required by law on the date of execution of the definitive contract, and (3) any other mutually agreeable clauses, terms, and conditions. The Contractor agrees to submit a ____ [insert specific type of proposal (e.g., fixed-price or cost-and-fee)] proposal, including data other than certified cost or pricing data, and certified cost or pricing data, in accordance with FAR 15.408, Table 15-1, supporting its proposal.

(b) The schedule for definitizing this contract is [insert date] ____ [insert target date for definitization of the contract and dates for submission of proposal, beginning of negotiations, and, if appropriate, submission of make-or-buy and subcontracting plans and certified cost or pricing data]:

(c) If agreement on a definitive contract to supersede this letter contract is not reached by the target date in paragraph (b) of this section, or within any extension of it granted by the Contracting Officer, the Contracting Officer may, with the approval of the head of the contracting activity, determine a reasonable price or fee in accordance with subpart 15.4 and part 31 of the FAR, subject to Contractor appeal as provided in the Disputes clause. In any event, the Contractor shall proceed with completion of the contract, subject only to the Limitation of Government Liability clause.

(1) After the Contracting Officer's determination of price or fee, the contract shall be governed by-

(i) All clauses required by the FAR on the date of execution of this letter contract for either fixed-price or cost-reimbursement contracts, as determined by the Contracting Officer under this paragraph (c);

(ii) All clauses required by law as of the date of the Contracting Officer's determination; and

(iii) Any other clauses, terms, and conditions mutually agreed upon.

(2) To the extent consistent with paragraph (c)(1) of this section, all clauses, terms, and conditions included in this letter contract shall continue in effect, except those that by their nature apply only to a letter contract.

(End of clause)

Section J - List of Attachments

The following attachments were deleted:

24R0036_Exhibits A-E_2102026

N62473-24-R-0036, Section L - Instructions, Conditions, and Notices to Offerors_02102026

SPS Conformed Copy

WD 2015-5635 Rev 26 12232024

WD CA20240001 Rev 16 12202024

Miscellaneous text in this section has been modified to:

SECTION J TECHNICAL ANNEXES AND ATTACHMENTS WILL BE PROVIDED AS A SEPARATE ATTACHMENT TO THIS SOLICITATION.

SECTION C - PERFORMANCE WORK STATEMENT

0100000 C General Information v2.6 MCBCP BOS I Follow-on

0200000 C Management and Administration v2.11 MCBCP BOS I Follow-on

0304010 C IT Support and Management v2.1 MCBCP BOS I Follow-on

0401000 C Force Protection-MCBCP BOSC

0402000 C Fire & Emergency Services- MCBCP BOSC I Follow-on

0404000 C Safety-MCBCP BOSC

0501030 C Aviation Fuel Support-MCBCP BOSC

0501040 C Ground Electronics-MCBCP BOSC

0501050 C Airfield Facilities-MCBCP BOS I Follow-on

0501070 C Passenger Terminal & Cargo Handling-MCBCP BOS I Follow-on

0600000 C Port Operations-MCBCP BOS I Follow-on

1001000 C Material Management-MCBCP BOS I Follow-on

1002000 C Supply Services-MCBCP BOS I Follow-on

1200000 C MWR-MCBCP BOS I Follow-on

1300000 C Galley-MCBCP BOS I Follow-on

1401000 C Family Housing-MCBCP BOS I Follow-on

1402000 C Unaccompanied Housing-MCBCP BOS I Follow-on

1501000 C Facility Management-MCBCP BOS I Follow-on

1501001 C Facility Mgmt (Relocatable Facility)v2.1 MCBCP BOS I Follow-on

1502000 C Facility Investment - v3.0 MCBCP BOS I Follow-on

1503010 C Custodial v2.5-MCBCP BOS I Follow-on

1503020 C Pest Control MCBCP BOS I Follow-on

1503030 C Integrated Solid Waste Management v2.4 MCBCP BOS I Follow-on

1503040 C Other (Training Pools) v2.1 MCBCP BOS I Follow-on

1503050 C Grounds Maint & Landscaping MCBCP BOS I Follow-on

1503060 C Pavement Clearance MCBCP BOS I Follow-on

1601000 C Utility Management-MCBCP BOS I Follow-on

1602000 C Electrical-MCBCP BOS I Follow-on

1603000 C Natural Gas-MCBCP BOS I Follow-on

1604000 C Wastewater-MCBCP BOS I Follow-on

1605000 C Steam-MCBCP BOS I Follow-on

1606000 C Water-MCBCP BOS I Follow-on

1607000 C Chiller-MCBCP BOS I Follow-on

1700000 C BSVE MCBCP BOS I Follow-on

SECTION F - DELIVERIES OR PERFORMANCE

0200000 F Management and Administration MCBCP BOS I Follow-on

0304010 F IT Support and Management MCBCP BOS I Follow-on

0401000 F Force Protection-MCBCP BOSC

0402000 F Fire & Emergency Services- MCBCP BOSC I Follow-on

0404000 F Safety-MCBCP BOSC I Follow-on

0501030 F Aviation Fuel Support-MCBCP BOSC

0501040 F Ground Electronics-MCBCP BOSC

0501050 F Airfield Facilities-MCBCP BOS I Follow-on

0501070 F Passenger Terminal & Cargo Handling-MCBCP BOS I Follow-on

0600000 F Port Operations-MCBCP BOS I Follow-on

1001000 F Material Management-MCBCP BOS I Follow-on

1002000 F Supply Services-MCBCP BOS I Follow-on

1200000 F MWR-MCBCP BOS I Follow-on

1300000 F Galley-MCBCP BOS I Follow-on

1401000 F Family Housing-MCBCP BOS I Follow-on

1402000 F Unaccompanied Housing-MCBCP BOS I Follow-on

1501000 F Facility Management-MCBCP BOS I Follow-on

1501001 F Facility Mgmt (Relocatable Facility)v2.1 MCBCP BOS I Follow-on

1502000 F Facility Investment - v3.0 MCBCP BOS I Follow-on

1503010 F Custodial v2.4-MCBCP BOS I Follow-on

1503020 F Pest Control v2.4 MCBCP BOS I Follow-on

1503030 F Integrated Solid Waste Management v2.3 MCBCP BOS I Follow-on

1503040 F Other (Training Pools) v2.1 MCBCP BOS I Follow-on

1503050 F Grounds Maint & Landscaping MCBCP BOS I Follow-on

1503060 F Pavement Clearance MCBCP BOS I Follow-on

1601000 F Utility Management-MCBCP BOS I Follow-on

1602000 F Electrical-MCBCP BOS I Follow-on

1603000 F Natural Gas-MCBCP BOS I Follow-on

1604000 F Wastewater-MCBCP BOS I Follow-on

1605000 F Steam-MCBCP BOS I Follow-on

1606000 F Water-MCBCP BOS I Follow-on

1607000 F Chiller-MCBCP BOS I Follow-on

1700000 F BSVE MCBCP BOS I Follow-on

SECTION H - SPECIAL CONTRACT REQUIREMENTS

SCA WD 2015-5635 dated December 03, 2025

DBA General Decision CA20260001 Modification #2 dated January 23, 2026

SECTION J - LIST OF ATTACHMENTS

0200000 J Management and Administration MCBCPvr

0304010 J IT Support and Management MCBCP BOS I Follow-on

0401000 J Force Protection-MCBCP BOSC

0402000 J Fire & Emergency Services- MCBCP BOSC I Follow-on

0404000 J Safety-MCBCP BOSC I Follow-on

0501030 J Aviation Fuel Support-MCBCP BOSC

0501040 J Ground Electronics-MCBCP BOSC

0501050 J Airfield Facilities-MCBCP BOS I Follow-on

0501070 J Passenger Terminal & Cargo Handling-MCBCP BOS I Follow-on

0600000 J Port Operations-MCBCP BOS I Follow-on

1001000 J Material Management-MCBCP BOS I Follow-on

1002000 J Supply Services-MCBCP BOS I Follow-on

1200000 J MWR-MCBCP BOS I Follow-on

1300000 J Galley-MCBCP BOS I Follow-on

1401000 J Family Housing-MCBCP BOS I Follow-on

1402000 J Unaccompanied Housing-MCBCP BOS I Follow-on

1501000 J Facility Management-MCBCP BOS I Follow-on

1501001 J Facility Mgmt (Relocatable Facility)v2.1 MCBCP BOS I Follow-on

1502000 J Facility Investment - v3.0 MCBCP BOS I Follow-on

1503010 J Custodial v2.6-MCBCP BOS I Follow-on

1503020 J Pest Control v2.4 MCBCP BOS I Follow-on

1503030 J Integrated Solid Waste Management v2.3 MCBCP BOS I Follow-on

1503040 F Other (Training Pools) v2.1 MCBCP BOS I Follow-on

1503050 J Grounds Maint & Landscaping MCBCP BOS I Follow-on

1503060 J Pavement Clearance MCBCP BOS I Follow-on

1601000 J Utility Management-MCBCP BOS I Follow-on

1602000 J Electrical-MCBCP BOS I Follow-on

1603000 J Natural Gas-MCBCP BOS I Follow-on

1604000 J Wastewater-MCBCP BOS I Follow-on

1605000 J Steam-MCBCP BOS I Follow-on

1606000 J Water-MCBCP BOS I Follow-on

1607000 J Chiller-MCBCP BOS I Follow-on

1700000 J BSVE MCBCP BOS I Follow-on

EXCEL Documents:

J-0200000-05 - Forms MCBCP BOS I Follow-on

J-0200000-07 - SERVICE PROVIDER INFORMATION v1 MCBCP BOS I Follow-on

J-0200000-08 - ASSET INFORMATION v2 MCBCP BOS I Follow-on

J-0200000-09 - ASSET SPECIFICATION v1 MCBCP BOS I Follow-on

J-0200000-10 - CHARACTERISTIC METER READING INFORMATION v2 MCBCP BOS I Follow-on

J-0200000-14 ELINS - 1502000 Facility Investment MCBCP BOS I Follow-on (unpopulated)

J-1502000-05 HVAC and Refrigeration Systems MCBCP BOS I Follow-on

J-1502000-07 Interior and Exterior Lighting Systems MCBCP BOS I Follow-on

J-1502000-08 Boilers and Unfired Pressure Vessels (UPVs) Systems MCBCP BOS I Follow-on

J-1502000-09 Fire Protection Systems MCBCP BOS I Follow-on

J-1502000-10 Vertical Transportation Equipment (VTE) and Systems MCBCP BOS I Follow-on

J-1502000-11 Compressed Air Systems MCBCP BOS I Follow-on

J-1502000-12 Auxiliary Generator Systems MCBCP BOS I Follow-on

J-1502000-13 Petroleum Fuels Rolling Stock - MCBCP BOS I Follow-on

J-1502000-14 Recycled Materials - Processing and Handling Equipment MCBCP BOS I Follow-on

J-1502000-15 Intrusion Detection (Building Security) Systems MCBCP BOS I Follow-on

J-1502000-16 Hangar Door Systems MCBCP BOS I Follow-on

J-1502000-17 Industrial Door, Bay Door and Automatic Entry Door Systems MCBCP BOS I Follow-on

J-1502000-18 Anti-Terror Force Protection (ATFP) Equipment MCBCP BOS I Follow-on

J-1502000-19 Dock Leveling Systems MCBCP BOS I Follow-on

J-1502000-20 Exhaust Capture Vent Systems MCBCP BOS I Follow-on

J-1502000-21 Vehicle Scale Systems MCBCP BOS I Follow-on

J-1502000-22 Traffic Control Signal Systems MCBCP BOS I Follow-on

J-1502000-23 Portable Light Towers MCBCP BOS I Follow-on

J-1502000-24 Pressure Washing - Wash Rack System MCBCP BOS I Follow-on

J-1502000-25 Oil Water Separators- MCBCP BOS I Follow-on

J-1502000-26 Aerated Vault Latrines and Wastewater Holding Systems MCBCP BOS I Follow-on

J-1502000-27 Instrumentation (Flowmeters and Associated Components) MCBCP BOS I Follow-on

J-1502000-28 Landfill Gas Systems MCBCP BOS I Follow-on

J-1502000-29 Propane Delivery Service MCBCP BOS I Follow-on

J-1502000-30 Electrical PM Program Inventory - Transformers MCBCP BOS I Follow-on

J-1502000-31 Electrical Power Metering Stations MCBCP BOS I Follow-on

J-1502000-32 Solar Photovoltaic (PV) Systems MCBCP BOS I Follow-on

J-1502000-33 Transformer Stations MCBCP BOS I Follow-on

J-1502000-34 400HZ Frequency Converters and Operator Stations MCBCP BOS I Follow-on

J-1502000-35 Grease and Grit Trap Systems MCBCP BOS I Follow-on

J-1502000-36 Exhaust Hood and Duct Systems MCBCP BOS I Follow-on

J-1502000-37 Soft Water Systems MCBCP BOS I Follow-on

J-1502000-38 Non-Potable Water Delivery, Replenishment, and Pumping Systems MCBCP BOS I Follow-on

J-1700000-02 Transportation Inventory MCBCP BOS I Follow-on

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS OR RESPONDENTS

24R0036_MCBCP BOSC Section L - FSC Evaluation Factors

SOLICITATION SUBMITTAL DOCUMENTS AND OTHER ATTACHMENTS

Exhibit A - Financial Questionnaire

Exhibit B - Factor 1, Corporate Experience

Exhibit C1 - Factor 2, Past Performance Questionnaire

Exhibit C2 - Factor 2, Past Performance History

Exhibit D - Factor 3, Key Personnel

Exhibit E - Factor 4, Safety Data and Narrative

J-0200000-14 ELINS - MCBCP BOS I Follow-on (unpopulated)

J-L-01 RFI Form

Section K - Representations, Certification, & Other Statements

The following clauses were added:

FAR Clauses Incorporated by Full Text

52.204-8 **Annual Representations and Certifications. (DEVIATION 2025-O0003 and 2025-O0004)** (Mar 2025) **Deviation 2025-O0004** (Mar 2025)

Annual Representations and Certifications (MAR 2025)(DEVIATION 2025-O0003 and 2025-O0004)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 561210.

(2) The small business size standard is \$47 million.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) [Reserved]

(xv) [Reserved]

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) [Reserved]

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[] (i) 52.204-17, Ownership or Control of Offeror.

- ☐ (ii) 52.204-20, Predecessor of Offeror.
- ☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.
- ☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.
- ☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.
- ☐ (vi) 52.227-6, Royalty Information.
- ☐ (A) Basic.
- ☐ (B) Alternate I.
- ☐ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

The following clauses were modified:

52.219-1 Small Business Program Representations.
hereby reads as follows:

Feb 2024

Small Business Program Representations (Feb 2024)

(a) *Definitions*. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

(1)

(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran or;

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C.101(2), with a disability that is service-connected, as defined in 38 U.S.C.101(16), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C.101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 561210.

(2) The small business size standard is \$47 Million.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

- (ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.
- (c) *Representations.*
- (1) The offeror represents as part of its offer that-
- (i) it ☐ is, ☐ is not a small business concern; or
- (ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]
- (2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.
- (3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a women-owned small business concern.
- (4) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]
- (5) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]
- (6) *Veteran-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.
- (7) *SDVOSB concern.* [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not an SDVOSB concern.
- (8) *SDVOSB joint venture eligible under the SDVOSB Program.* [Complete only if the offeror represented itself as a SDVOSB concern in paragraph (c)(7) of this provision]. The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]
- (9) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-
- (i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and
- (ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.
- (d) *Notice.* Under 15 U.S.C.645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall-
- (1) Be punished by imposition of fine, imprisonment, or both;
- (2) Be subject to administrative remedies, including suspension and debarment; and
- (3) Be ineligible for participation in programs conducted under the authority of the Act.
- (End of provision)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

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FAR/DFARS Provision #	Title	Date	Change
_____	_____	_____	_____

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

The following clauses were deleted:

FAR Clauses Incorporated by Full Text

52.204-8 Annual Representations and Certifications. (Jan 2025)

ANNUAL REPRESENTATIONS AND CERTIFICATIONS (JAN 2025)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 561210[insert NAICS code].

(2) The small business size standard is \$47,000,000[insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the provision at 52.204-7.

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

☐ (i) 52.204-17, Ownership or Control of Offeror.

☐ (ii) 52.204-20, Predecessor of Offeror.

☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

☐ (vi) 52.227-6, Royalty Information.

☐ (A) Basic.

☐ (B) Alternate I.

☐ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

Miscellaneous text in this section has been modified to:

SECTION L WILL BE PROVIDED AS A SEPARATE ATTACHMENT TO THIS SOLICITATION. SEE SECTION J FOR LIST OF ATTACHMENTS.

Attachment: 24R0036_MCBCP BOSC Section L - FSC Evaluation Factors

The following clauses were modified:

52.216-1 Type of Contract.

Apr 1984

hereby reads as follows:

Type of Contract (Apr 1984)

The Government contemplates award of a Firm Fixed Priced/IDIQ contract resulting from this solicitation.

(End of provision)

52.233-2 Service of Protest.

Sep 2006

hereby reads as follows:

Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer by obtaining written and dated acknowledgment of receipt from NAVFAC Southwest Facilities Support Contracts Team Code: RAQ2 Attn: Christopher Jennen 750 Pacific Highway, Floor 7 San Diego, CA 92132-5190.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference.

Feb 1998

hereby reads as follows:

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/>

(End of provision)

Section M - Evaluation Factors for Award

Miscellaneous text in this section has been modified to:

A. BASIS FOR AWARD

1. The Government reserves the right to eliminate from consideration for award any or all offers at any time prior to award of the contract; to negotiate with offerors in the competitive range; and to award the contract to the offeror submitting the proposal determined to represent the best value--the proposal most advantageous to the Government, cost/price and other factors considered.
2. As stated throughout this solicitation, the Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In addition, if the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.
3. The tradeoff process is selected as appropriate for this acquisition. The Government considers it to be in its best interest to allow consideration of award to other than the lowest priced offeror or other than the highest technically rated offeror.
4. As stated in the solicitation, all technical factors when combined are of equal importance to the performance confidence assessment (past performance) rating; and all technical factors and the performance confidence assessment (past performance) rating, when combined are significantly more important than price.
5. Any proposal found to have a deficiency in meeting the stated solicitation requirements or performance objectives will be considered ineligible for award, unless the deficiency is corrected through discussions. An Unacceptable rating in any of the non-cost/price factors and/or sub-factors will result in an overall rating of "Unacceptable" for the non-cost/price factors, unless corrected through discussions. Proposals may be found to have either a significant weakness or multiple weaknesses that impact either the individual factor rating or the overall rating for the proposal. The evaluation report must document the evaluation board's assessment of the identified weakness(s) and the associated risk to successful contract performance resulting from the weakness (s). This assessment must provide the rationale for proceeding to award without discussions.

B. ADJECTIVAL DESCRIPTIONS

Definitions: The following definitions are provided to assist evaluators in the evaluation of each non-cost/price factor.

- (1) Acceptable Features: A proposed method or technique in the proposal that addresses solicitation requirements such that no further explanation or documentation is necessary.
- (2) Deficiency: A material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.
- (3) Experience: Pertains to work performed by an Offeror and Offeror's Team, within the prescribed timeframe, which is the same or similar to the work that may be ordered under this contract in terms of size, scope, and complexity. Experience is distinct from past performance (how well an Offeror has performed).
- (4) First-Tier Small Business Subcontractor: Refers to a Small Business Offeror that cannot independently demonstrate its own experience, the Small Business Offeror may utilize the experience of a first-tier Small Business subcontractor that will perform major or critical aspects of the requirement in order to demonstrate relevant service experience under this evaluation factor by the subcontractor directly hired by the Offeror to perform services on the prime contract.
- (5) Five-Year Period: The prescribed timeframe for this solicitation that refers to the period of time for which projects may be submitted for experience or past performance. The five-year period is calculated by counting back five (5) years from the initial RFP/solicitation issuance date.
- (6) Joint Venture (JV): A legal business entity formed between two or more companies (parties) to undertake the performance activities of a contract together. This does not include other arrangements such as "teaming agreement" or "strategic alliance," which are not recognized as bona fide joint ventures for the purposes of this solicitation.
- (7) Offeror: Refers to the Contractor submitting the proposal as Offeror, including joint ventures, whose name and address appears in Block 15 of Standard Form (SF) 33 (Solicitation, Offer and Award). In the event of a conflict or inconsistency between the Offeror's name and address cited on the SF33 - and any other part of the proposal, the SF33 -is the conclusive document in determining the Offeror who is submitting the proposal.
- (8) Offeror's Team: Refers to the Offeror (see definition) and the Offeror's first-tier small business subcontractor(s) only.
- (9) Past Performance: Relates to how well an Offeror and Offeror's Team has performed; e.g., the quality of work accomplished, schedule compliance, customer satisfaction.

- (10) Page: Refers to one printed side of a piece of paper. For example, five (5) pieces of paper printed on both sides would result in 10 pages of narrative.
- (11) Quality: Is the composite of material attributes including performance features and characteristics of a production or service to satisfy a customer's given need. For technical factors, applies when assessing the quality of approach and understanding of the requirements within the ratings. Note: Also applies to past performance factor when determining Performance Confidence Assessment or, Acceptable/Inacceptable ratings.
- (12) Rating: Is the adjectival word that corresponds with the description that best describes the Government's assessment of the Offeror's proposal against a non-cost/price evaluation factor. For each subjective technical factor, the Government utilizes the ratings identified in table 1.
- (13) Rating Method: As it pertains to source selection, is the application of adjectival ratings for non-cost price factors for the corresponding rating tables identified in the source selection plan. For each subjective technical factor, the Government uses either methodology 1 - separate technical and risk ratings, or methodology 2 - combined technical / risk ratings.
- (14) Risk: as it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk to assess the degree to which Offeror's proposed approach to achieving the technical factors may involve risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.
- (15) Self-Perform: Refers to the Offeror who performs relevant work that is the same or similar in size, scope and complexity of the work requirements in the solicitation, by in-house workforce and not by sub-contractor(s). This does not include project administration or management functions (such as quality control or safety program) and miscellaneous work (such as housekeeping or cleanup).
- (16) Significant Strength: An aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.
- (17) Significant Weakness: A flaw that appreciably increases the risk of unsuccessful contract performance.
- (18) Strength: An aspect of an Offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.
- (19) Total Annual Contract Value: The contract value for a 12-month period of performance that is funded by appropriation (the intent is to prohibit the use of not to exceed values and unfunded non-recurring amounts).
- (20) Uncertainty: Any aspect of a non-cost/price factor proposal for which the intent of the offer is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake).
- (21) Weakness: A flaw in the proposal that increases the risk of unsuccessful contract performance.

C. EVALUATION FACTORS FOR AWARD

1. The solicitation requires the evaluation of price and the following non-cost/price factors:

Factor 1 - Corporate Experience
Factor 2 - Past Performance
Factor 3 - Key Personnel
Factor 4 - Quality Management System
Factor 5 - Safety

The distinction between corporate experience and past performance is corporate experience pertains to the types of work and volume of work completed by a contractor that are comparable to the types of work covered by this requirement, in terms of size, scope, and complexity. Past performance pertains to both the relevance of recent efforts and how well a contractor has performed on the contracts.

2. The relative order of importance of the non-cost/price evaluation factors is the technical factors 1, 3, 4, and 5 are of equal importance to each other and, when combined, are equal in importance to the past performance evaluation/performance confidence assessment factor, Factor 2. When the proposal is evaluated as a whole, the technical factors and past performance/performance confidence assessment factor combined (i.e., the non-cost /price evaluation factors) are significantly more important than price.

The importance of price will increase if the Offerors' non-cost/price proposals are considered essentially equal in terms of overall quality, or if price is so high as to significantly diminish the value of a noncost/price proposal's superiority to the Government. Award will be made to the responsible Offeror(s) whose offer conforms to the solicitation and represents the best value to the Government, price and nonprice factors considered.

3. The Basis of Evaluation and Submittal Requirements for Each Factor can be found in Section L.